This document has legal consequences.
If you do not understand it, consult your attorney.
The text of this form may not be altered in any manner
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Form # 2047 01/26

LISTING CONTRACT (Limited Agency)
(EXCLUSIVE RIGHT TO SELL)

_____, the owner of record (hereinafter referred to as "Owner") in the municipality of _____ (if incorporated), County of _____, Missouri, known as and numbered _____ (legal description to govern), hereby appoints Listing Brokerage _____ (hereinafter referred to as "Broker") as sole and exclusive agent with the exclusive right to market and sell or exchange this property upon the below terms and conditions. The term Broker shall refer to the listing brokerage and any affiliated licensees throughout this agreement. Owner represents that they have the legal right to make an absolute sale of this property.

TERM

This Contract begins on the Effective Date and ends at 11:59 p.m. on _____, together with any written extension thereof ("Expiration Date"). The "Effective Date" shall be the date of final acceptance thereof, as indicated by the date adjacent to the signature of the last party to sign this Contract or (specify if otherwise) _____

LISTING PRICE

The listing price for this property shall be $_____ ("Listing Price").

COMPENSATION FOR SERVICES.

Note: The amount of compensation is not set by law. Compensation is set by each broker and is negotiable, subject to individual broker policy.

If, during the Term of this Listing Contract, Broker presents an offer to purchase the property from a ready, willing, and able buyer at the Listing Price, or if Owner enters into a contract or receives an offer that results in a contract for the sale or exchange of the property at any price and upon any terms to which Owner consents, Owner shall be obligated to pay compensation as follows:

Listing Broker Compensation: _____ (%) of the purchase price ($0 if none stated), $ _____ as a flat amount ($0 if none stated), **AND** Other: (describe) _____ *(N/A if left blank).*

Unrepresented Buyer. In the event buyer is not represented by a broker, Listing Broker Compensation *(check one)*

☐ shall remain the same as the amount listed under Listing Broker Compensation **OR**
☐ shall be modified as follows _____% of the sales price, **AND** $ _____.

Additional Listing Broker Compensation. Owner agrees to pay Broker additional compensation of $_____ ($0 if none stated). This additional compensation *(check one)* ☐ **Shall OR** ☐ **Shall Not** be credited against any other compensation owed by Owner to Broker and shall be due and payable to Broker on *(if applicable, check one)*:

☐ the Effective Date of this Listing Contract, regardless of whether or not a ready, willing, and able buyer is procured, and which shall be deemed earned upon receipt.
☐ only if and on the same date that the other compensation above provided for is payable.

The compensation amount shall be determined by the total purchase or exchange price without reduction for any other charges (i.e., closing adjustments, points, liens, mortgages, compensation, etc.). Owner agrees that such compensation shall be paid if the property is sold, exchanged, or otherwise transferred by Owner within _____ days *(0 days if left blank)* following the Term of this Contract or any extensions thereof ("Protection Period") to anyone to whom the property was presented during the Term of this Contract, provided Owner has received by the Expiration Date written notice of the names of said prospects, or the names of Broker and affiliated licensees representing such prospects. No compensation is owed if Owner enters into a bona fide listing agreement with another licensed real estate broker and Owner pays that broker compensation on that transaction.

Unless otherwise stated, all compensation owed under this agreement is to be paid at closing, which in the case of a sale on contract for deed shall be at the time buyer and Owner execute the initial contract or agreement for deed.

Broker Assisting Buyer. Owner acknowledges that Broker is authorized to cooperate with other brokers and any affiliated licensees in Broker's firm acting pursuant to any other brokerage relationship as defined by 339.710 to 339.860 RSMo, including but not limited to buyer's agents, subagents, and/or transaction brokers ("Buyer's Broker"). In addition to the Listing Broker Compensation listed above, Owner acknowledges buyer may request Owner to compensate some or all of Buyer's Broker's compensation. **Owner has no obligation to pay Buyer's Broker's compensation. Buyer's Broker's compensation is negotiable and will be determined by a ratified sale contract between Owner and buyer.** Owner acknowledges that a Buyer's Broker may represent the interest of buyers only. (Check one):

☐ Owner authorizes Broker to disclose and market Owner's willingness to compensate Buyer's Broker.
☐ Owner does not authorize Broker to disclose and market Owner's willingness to compensate Buyer's Broker

Owner authorizes escrow agent to pay the Buyer's Broker's compensation directly to Buyer's Broker at closing.

Note: Owner acknowledges that sale contract offers and compensation agreement(s) may contain terms to compensate the Buyer's Broker. Owner understands the provisions of this section and agrees that the election made in this section is made solely by Owner.

Owner Concessions

Owner concessions is a payment from Owner towards buyer's charges and closing costs (e.g., loan origination fees, discount points, buy-down or subsidy fees, prepaids, Buyer's Broker's fees or other charges, as allowed by lender(s).

☐ Owner authorizes Broker to disclose and market Owner's willingness to consider concessions.
☐ Owner does not authorize Broker to disclose and market Owner's willingness to consider concessions.

DUAL AGENCY

Does Owner consent to Broker acting as a dual agent? *(check one)*

☐ **Yes** ☐ **No** ☐ **Not Applicable** because dual agency is not allowed by Broker's company policy. See Dual Agent Duties and Obligations.

SELLER LIMITED AGENCY AS STARTING POINT

Pursuant to this Listing Contract, Broker will initially be acting in the capacity of Owner's limited agent, with the duties and obligations of a seller's limited agent under Missouri law as set forth following the parties' signatures below. However, Owner acknowledges that from time to time, a prospective buyer may engage Broker to act in one of several possible capacities with respect to that buyer, depending on what brokerage relationships are permitted by Broker's company policy. Under various circumstances, Missouri law may permit or require a conversion of Broker's brokerage relationship with Owner to a different brokerage relationship. Any conversion to a different brokerage relationship shall only be made upon Owner's written consent, as required by rule or regulation.

DESIGNATED AGENCY

If, as authorized by Missouri law, Broker policy authorizes its affiliated licensees to act as Designated Agents, _____ is appointed as Owner's Designated Agent. In the event the Designated Agent is not available at any given time, any of the following agents affiliated with the Broker are hereby appointed to represent Owner without further notice: *(If a Designated Agent is appointed, the Designated Broker must sign this agreement.)*

_____

_____

PREVIOUS REPRESENTATION

Owner understands that Broker may have previously represented a buyer who is interested in the property. During that representation, Broker may have learned material information about the buyer that is considered confidential. Under the law, Broker may not disclose any such confidential information to Owner.

BUYERS REPRESENTATIVE

Owner acknowledges that prospective buyers may elect to employ the services of a designated broker as their own agent. Owner also acknowledges that from time to time, a prospective buyer may engage Broker to act in one of several possible capacities with respect to that buyer, depending on what brokerage relationships are permitted by Broker's company policy.

HOME WARRANTY

Owner acknowledges the availability of home warranty protection plans and agrees to *(check one)*:
☐ Offer a warranty plan
☐ Not offer a warranty plan
☐ Consider a warranty plan at a later date

DISCLOSURE AUTHORIZATIONS

Offers. Owner ☐ **Does OR** ☐ **Does Not** *(check one)* permit Broker to disclose the existence of offers on the property.

Terms. Owner ☐ **Does OR** ☐ **Does Not** *(check one)* permit Broker to disclose the terms of offers on the property; provided, however, that Broker is permitted to disclose such terms as may be required by the MLS, applicable brokerage laws, or Broker's policy.

BROKER ROLE

Broker is not an expert in law, tax, financing, surveying, structural, mechanical conditions, hazardous materials, environmental risks, engineering, or other specialized topics. Broker strongly encourages contacting the appropriate professional if questions or concerns exist.

PROPERTY ACCESS AND KEY BOX SYSTEM

Owner ☐ **Does OR** ☐ **Does Not** *(check one)* permit Broker to place a key box on the property.

If authorized above, Owner permits Broker to place a key box on the property, a locked container that holds a key(s) to the property and enables access to the property at reasonable times to facilitate the showing and sale or exchange of the property. In its sole discretion, Broker may grant unaccompanied access to its affiliated licensees and other Subscribers of the St. Louis Area Regional Key Box System ("System"). Owner shall, without limitation, indemnify and hold harmless Broker and Subscribers, the key box manufacturer, and the key box distributor/service center against and from any actions, suits, costs, expenses, damages, and liabilities, including attorney's fees arising out of, connected with or resulting from the use of a key box. Owner shall not, however, indemnify, or hold System Subscribers harmless for claims arising out of the intentional or negligent acts of the Subscribers.

Note: Subscribers to the St. Louis Area Regional Key Box System could include but are not limited to Broker and their affiliated licensees, appraisers, inspectors, lenders, surveyors, home stagers, etc. ("Subscribers")

SPECIAL AGREEMENTS. *(none if left blank)*

_____

_____

_____

_____

_____

OWNER RESPONSIBILITY TO DISCLOSE

Owner represents that, except as noted on the Seller's Disclosure Statement or otherwise in writing:

1) Owner knows of no actual or proposed special subdivision or condominium assessments.
2) Owner knows of no structural or other material defects or material facts that adversely affect the value of the property.
3) All of the property's mechanical elements and the appliances sold herewith are in proper working condition or will be restored to proper working condition as of the date of closing. This representation shall not be construed to be a warranty of condition but shall constitute the Owner's opinion.
4) Owner will fully and promptly disclose in writing any new or material information pertaining to the property that is discovered at any time prior to closing.

OWNER AGREES

1) To cooperate with Broker to facilitate the showing, marketing, and sale of the property.
2) Not to lease the property during this listing without Broker's prior written approval.
3) To refer to the Broker any offer or inquiry regarding the property which may be received by the Owner during the Term of this Contract.
4) To leave all utilities on through the day of closing in order to facilitate showings, inspections, and the buyer's final walk-through of the property unless otherwise agreed to or disclosed in writing.
5) To remove or secure and (if Owner desires) insure all property and valuables (including but not limited to firearms, money, medicine, and jewelry) to assume the risk for any vandalism, theft, or damage of any kind.
6) To maintain the property in good repair through the date of closing.
7) To allow Broker to assist prospective buyers authorized by Broker to have access to the property at all reasonable times to show the property to such prospects.
8) To promptly furnish the Broker with a copy of any available survey report.
9) To advise Broker if there is a likelihood that Owner's net sale proceeds will be insufficient to pay off at closing, all loans secured by the property plus liens and closing costs. If Owner is unable to bring additional monies to closing to pay off the remaining loan balances in order to close, Form #2175 (Short Sale Supplement to the Listing Contract) shall be attached.
10) To fully and promptly disclose in writing any new material information pertaining to the property that is discovered at any time prior to closing.

OWNER AUTHORIZES BROKER AND THEIR AFFILIATED LICENSEES TO

1) Use all reasonable and recognized professional practices including, but not limited to, association and cooperation with other brokers provided that such association and cooperation is subject to the other provisions in this form and is not limited or conditioned to the

retaining of or payment by Owner to a broker, and the right to submit the property to any Multiple Listing Service, the Internet, and any other medium, and provide timely notice of status changes and to provide sales data information, including the final sale price, to the MLS and its members;

2) Use the undersigned Owner's name and property information for advertising and in trade papers in connection with this transaction;
3) Place a suitable sign on the property, if allowed by law;
4) Obtain, at Owner's expense, any documentation or certification that may be required in order to comply with any applicable statutes or local ordinances; and,
5) Initiate a title examination of the property on behalf of the Owner.

OWNER ACKNOWLEDGES

1) Having read the "Broker Assisting Buyer" section above, that Owner understands the provisions of that section and agrees that the election made in that section is made solely by the Owner.
2) Having read the "Owner Concessions" section above, that Owner understands the provisions of that section and agrees that the election made in that section is made solely by the Owner.
3) Having read the applicable "Duties and Obligations of Limited Agency".
4) Having read the applicable "Dual Agents Duties and Obligations".
5) That this agreement creates an agency relationship and, therefore, prohibits the Broker from acting as a transaction broker.
6) That under Chapter 429 of the Missouri Revised Statutes, if Owner has contracted with anyone for the provision of work, labor, or materials for the property, Owner may be required to post and record a "notice of intended sale" at least 45 days before the earliest date on which the Owner intends to close, in order to assure that the Owner can deliver clear title at closing; if work labor or materials have been provided, Owner should seek legal advice to comply with this law.

PHOTOGRAPHS AND INTERNET ADVERTISING

1. Owner agrees that Broker may photograph or otherwise electronically capture images of the exterior and, if authorized, interior of the Property ("Images") for static and/or virtual tours of the Property by buyers and others for use on Broker's website, the MLS, and other marketing materials and sites. Owner acknowledges that once Images are placed on the Internet, neither Broker nor Owner has control over who can view such Images, what use viewers may make of the Images, or how long such Images may remain available on the Internet. Owner further assigns any rights in all Images to the Broker and agrees that such Images are the property of Broker and that Broker may use such Images for advertising, including post sale and for Broker's business in the future.

Owner ☐ Does OR ☐ Does Not *(check one)* authorize interior images.

2. Owner acknowledges that prospective buyers and/or other persons coming onto the property may take photographs, videos or other images of the property. Owner understands that Broker does not have the ability to control or block the taking and use of Images by any such persons. Owner acknowledges that unauthorized persons may take images who do not have access to or have not read any limiting instruction in the MLS or take images regardless of any limiting instruction in the MLS. Once Images are taken and/or put into electronic display on the Internet or otherwise, neither Broker nor Owner has control over who views such Images nor what use viewers may make of the Images.

SURVEILLANCE/RECORDING

Notice to Owner regarding recordings within the property

Owner has been advised to remove any items of a personal nature that Owner does not want to be photographed, recorded or transmitted (including but not limited to family photos, paperwork and other personally identifiable information). Owner hereby releases and indemnifies Broker and employees from any liability which may result from any recording or transmitting in the property.

In the event Owner has a recording system in the Owner's property that records or transmits audio, Owner understands that recording or transmitting the audio of prospective buyers may result in violation of state or federal wiretapping laws. Owner hereby releases and indemnifies Broker, and employees from any liability which may result from any recording or transmitting in the property.

SMART TECHNOLOGY PRIVACY CONCERNS

If the property contains any smart technology, Owner should prioritize privacy and security by resetting and unlinking all devices, including hubs, cameras, locks, and thermostats. Owner should also clear recorded data, change access codes, and uninstall associated apps. Additionally, Owner should reset any Wi-Fi password (if applicable) to prevent lingering access. Owner should also delete automation scenes and refer to user manuals for specific instructions to ensure a fresh start for new owners, safeguarding Owner's personal information and the security of the property. Owner hereby releases and indemnifies Broker, and employees from any liability resulting from the existence or use of such systems before or after closing.

NON-DISCRIMINATION

The parties understand and agree that it is illegal for either of the parties to refuse to display or sell Owner's property to any person on the basis of race, color, religion, sex, disability, familial status, national origin, ancestry, sexual orientation, or gender identity. The parties agree to comply with all applicable federal, state, and local fair housing laws.

REMEDIES
If Owner breaches this Listing Contract or it becomes necessary for Broker to retain an attorney to enforce any of the terms hereof, then without limiting any other right or remedy hereunder or otherwise available at law or inequity, Broker shall be entitled to recover all costs and expenses of litigation incurred, including but not limited to court costs and reasonable attorney fees. The provisions of this paragraph shall survive the expiration or any earlier expiration of this Listing Contract.

INDEMNIFICATION
Owner agrees to save and hold Broker harmless from all claims, disputes, litigation, judgments, and costs (including reasonable attorney's fees) arising from Seller's breach of this Contract, from any incorrect information or misrepresentation supplied by Owner or from any material facts, including latent defects, that are known to Owner that Owner fails to disclose.

MODIFICATION OF THIS CONTRACT.
No modification of any of the terms of this Contract shall be valid and binding upon the parties or entitled to enforcement unless such modification has first been reduced to writing and signed by the parties.

FRANCHISE DISCLOSURE.
If Broker is a member of a franchise, the franchisor is not responsible for the acts of said Broker.

FOREIGN INVESTMENT IN REAL PROPERTY TAX ACT (FIRPTA).
Owner represents that Owner ☐ **Is OR** ☐ **Is Not** *(check one)* a "foreign person" as described in the Foreign Investment in Real Property Tax Act ("FIRPTA"), 26 USC §1445. A "foreign person" is a nonresident alien individual or foreign corporation that has not made an election to be treated as a domestic corporation, foreign partnership, trust, or estate. It does not include a US citizen or resident alien individual. If Owner is a foreign person as defined in FIRPTA, then (among other things) mandatory withholding of funds from the sale proceeds may be required. Due to the complexity and potential risks of FIRPTA, Owner should seek legal and tax advice regarding compliance, particularly if an exception is claimed to apply or to be relied upon.

BROKER DISCLOSURE FORM.
Seller acknowledges receipt of the Broker Disclosure Form prescribed by the MREC (Missouri Real Estate Commission) by either a) on or before the signing of the (this) Seller's agency agreement, or b) upon the licensee obtaining any personal or financial information, whichever occurs first.

ELECTRONIC SIGNATURES.
All parties agree that this transaction can be conducted by electronic/digital signatures, according to the Uniform Electronic Transaction Act as adopted by the state of Missouri.

Owner and Broker agree that either party may acknowledge amendments to this Contract by email communications from one of the following email addresses. Authorization is not granted if no email address is provided.

(Signature Lines Appear on the Following Page)

OWNER SIGNATURE DATE

Owner Printed Name

Owner Current Address

Owner City, State, Zip

Owner Email Address

Owner Phone

OWNER SIGNATURE DATE

Owner Printed Name

Owner Current Address

Owner City, State, Zip

Owner Email Address

Owner Phone

☐ Check box to indicate if Owner is using an additional signature page, in which case, an additional signature page is required for each separate rider, addendum, amendment, or other related document.

BROKER (Company)

BROKER SIGNATURE DATE

(if required by company policy or the practice of Designated Agency)

AUTHORIZED AGENT SIGNATURE DATE

Authorized Agent Printed Name

Authorized Agent Email

Broker Printed Name

RELEVANT ASPECTS OF MISSOURI REAL ESTATE LAW ARE REFERENCED BELOW:

DUTIES AND OBLIGATIONS OF LIMITED AGENCY (as required by 339.730 RSMo).

1. A licensee representing a seller or landlord as a seller's agent or a landlord's agent shall be a limited agent with the following duties and obligations:
   (1) To perform the terms of the written agreement made with the client;
   (2) To exercise reasonable skill and care for the client;
   (3) To promote the interests of the client with the utmost good faith, loyalty, and fidelity, including:
      (a) Seeking a price and terms which are acceptable to the client, except that the licensee shall not be obligated to seek additional offers to purchase the property while the property is subject to a contract for sale or to seek additional offers to lease the property while the property is subject to a lease or letter of intent to lease;
      (b) Presenting all written offers to and from the client in a timely manner regardless of whether the property is subject to a contract for sale or lease or a letter of intent to lease;
      (c) Disclosing to the client all adverse material facts actually known or that should have been known by the licensee; and
      (d) Advising the client to obtain expert advice as to material matters about which the licensee knows but the specifics of which are beyond the expertise of the licensee;
   (4) To account in a timely manner for all money and property received;
   (5) To comply with all requirements of sections 339.710 to 339.860, subsection 2 of section 339.100, and any rules and regulations promulgated pursuant to those sections; and
   (6) To comply with any applicable federal, state, and local laws, rules, regulations, and ordinances, including fair housing and civil rights statutes and regulations.

2. A licensee acting as a seller's or landlord's agent shall not disclose any confidential information about the client unless disclosure is required by statute, rule or regulation or failure to disclose the information would constitute a misrepresentation or unless disclosure is necessary to defend the affiliated licensee against an action of wrongful conduct in an administrative or judicial proceeding or before a professional committee. No cause of action shall arise against a licensee acting as a seller's or landlord's agent for making any required or permitted disclosure.

3. A licensee acting as a seller's or landlord's agent owes no duty or obligation to a customer, except that a licensee shall disclose to any customer all adverse material facts actually known or that should have been known by the licensee. A seller's or landlord's agent owes no duty to conduct an independent inspection or discover any adverse material facts for the benefit of the customer and owes no duty to independently verify the accuracy or completeness of any statement made by the client or any independent inspector.

4. A seller's or landlord's agent may show alternative properties not owned by the client to prospective buyers or tenants and may list competing properties for sale or lease without breaching any duty or obligation to the client.

5. A seller or landlord may agree in writing with a seller's or landlord's agent that other designated brokers may be retained and compensated as subagents. Any designated broker acting as a subagent on the seller's or landlord's behalf shall be a limited agent with the obligations and responsibilities set forth in subsections 1 to 4 of this section.

MINIMUM BROKERAGE SERVICES (as required by 339.780.7 RSMo).

Pursuant to Missouri Law, Broker, through its designated broker and/or through one or more affiliated licensees, shall provide, at a minimum, the following services:

(1) Accepting delivery of and presenting to the client or customer offers and counteroffers to buy, sell, or lease the client's or customer's property or the property the client or customer seeks to purchase or lease;
(2) Assisting the client or customer in developing, communicating, negotiating and presenting offers, counteroffers and notices that relate to the offers and the counteroffers until a lease or purchase agreement is signed and all contingencies are satisfied or waived; and
(3) Answering the client's or customer's questions relating to the offers, counteroffers, notices, and contingencies.

DUAL AGENTS DUTIES AND OBLIGATIONS (as required by 339.750 RSMo).

1. A licensee may act as a dual agent only with the consent of all parties to the transaction. Consent shall be presumed by a written agreement pursuant to section 339.780.

2. A dual agent shall be a limited agent for both the seller and buyer or the landlord and tenant and shall have the duties and obligations required by sections 339.730 and 339.740 unless otherwise provided for in this section.

3. Except as provided in subsections 4 and 5 of this section, a dual agent may disclose any information to one client that the licensee gains from the other client if the information is material to the transaction unless it is confidential information as defined in section 339.710.

4. The following information shall not be disclosed by a dual agent without the consent of the client to whom the information pertains:
   (1) That a buyer or tenant is willing to pay more than the purchase price or lease rate offered for the property;
   (2) That a seller or landlord is willing to accept less than the asking price or lease rate for the property;
   (3) What the motivating factors are for any client buying, selling, or leasing the property;
   (4) That a client will agree to financing terms other than those offered; and
   (5) The terms of any prior offers or counter offers made by any party.

5. A dual agent shall not disclose to one client any confidential information about the other client unless the disclosure is required by statute, rule, or regulation or failure to disclose the information would constitute a misrepresentation or unless disclosure is necessary to defend the affiliated licensee against an action of wrongful conduct in an administrative or judicial proceeding or before a professional committee. No cause of action for any person shall arise against a dual agent for making any required or permitted disclosure. A dual agent does not terminate the dual agency relationship by making any required or permitted disclosure.

6. In a dual agency relationship, there shall be no imputation of knowledge or information between the client and the dual agent or among persons within an entity engaged as a dual agent.